

	2023-01314705	Plaintiff Bethany Grace’s (“Plaintiff”) Motion to Strike Defendants CBRE Capital Markets, Inc. and Troy Tegeler’s (collectively “Defendants”) Motion for Summary Adjudication is denied. Plaintiff moves, under CCP sections 436, 437c and 1008, for an order striking Defendants’ “renewed Motion for Summary Adjudication of Claims 4, 5, 7, 9, and 10” (the “MSA”). (ROA 706.) CCP section 435, which addresses motions to strike, specifically limits a motion to strike to a “pleading,” which is defined to mean “a demurrer, answer, complaint, or cross-complaint.” (Code Civ. Proc., § 435, subd. (a).) In turn, CCP section 436 provides the court with authority to strike out “any irrelevant, false, or improper matter inserted in <i>any pleading</i>” or “all or any part of <i>any pleading</i> not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc., § 436 [emphasis added].) Here, the MSA is not a “demurrer, answer, complaint or cross-complaint.” Thus, it would not be appropriate for the court to strike the MSA under CCP section 436. Whether the MSA constitutes an improper motion for reconsideration shall be decided in ruling on the MSA. (See <i>Patterson v. Sacramento City Unified School Dist.</i> (2007) 155 Cal.App.4th 821, 827 [“To determine whether a second summary judgment motion is proper, courts consider whether it involves ‘newly discovered facts or circumstances or a change of law’”]; accord <i>Bagley v. TRW, Inc.</i> (1999) 73 Cal.App.4th 1092, 1097 [holding second motion for summary judgment or adjudication was “statutorily barred” after comparing the evidence submitted with the first motion to the evidence submitted with the second motion and finding that the moving party did not show any newly discovered facts, circumstances, or law].) Accordingly, Plaintiff’s motion to strike is denied. The MSA remains on calendar for 10/12/26 at 1:30 PM. Defendants shall give notice of the ruling.
9	McPherson vs. Donald & Lynn Southard, LLC 2025-01494975	Motion to Quash Service of Summons-Southard Parties Here, Moving Parties take issue with the fact that the Trusts were not properly served. Unlike a corporation, a trust is not a legal entity — it is simply a fiduciary relationship with respect to property. Legal title to property owned by a trust is held by the trustee, and a trust is simply a collection of assets and liabilities. (<i>Stoltenberg v. Newman</i> (2009) 179

Cal.App.4th 287, 294; *Greenspan v. LADT, LLC* (2010) 191 Cal.App.4th 486, 521.)

The real party in interest in litigation involving a trust is always the trustee. (*Presta v. Tepper* (2009) 179 Cal.App.4th 909, 914.) California Code of Civil Procedure § 369 expressly authorizes a trustee of an express trust to sue without joining the beneficiaries as parties (CCP § 369)[6], confirming that the trustee — not the trust — is the proper litigation representative. As a general rule, the trustee is the real party in interest with standing to sue and defend on the trust's behalf. (*Portico Management Group, LLC v. Harrison* (2011) 202 Cal.App.4th 464.)

Here, this Motion challenges service; Donald Southard and Lynn Southard appear as trustees for both Trusts to argue that service is improper.

As to Don and Lynn Southard Trust Dated April 19, 2007, Plaintiff filed a Proof of Service indicating that the trust was **sub-served** on 12/1/25 at 12:30 p.m. at 1856 N Glenview Ave, Anaheim, CA 92807 on an unnamed individual who “appeared to be a gray-haired white male contact 55 - 65 years of age, 5'8"-5'10" tall and weighing 180-200 lbs.” (ROA 18.) There appears no dispute that this was Don Southard.

An attempt at subservice actually resulted in personal service.

Thus, as to the Don and Lynn Southard Trust Dated April 19, 2007, the Motion is denied. The Proof of Service indicates that a Trustee was in fact personally served.

Thus, the Motion is denied as to Don and Lynn Southard Trust Dated April 19, 2007.

As to the Southard Family Trust Dated December 13, 2022, Plaintiff filed a Proof of Service indicating that the trust was **personally served** on 11/28/25 at 2:31 p.m. at 1856 N Glenview Ave, Anaheim, CA 92807 on an unnamed individual who “appeared to be a brown-haired white female contact 55-65 years of age, 5'6"-5'8" tall and weighing 120-140 lbs.” (ROA 14.)

In support of the Motion, the Southards provide testimony of Charlotte Cone, who says that she was a guest staying at the home of Donald and Lynn Southard at 1856 North Glenview Ave. in Anaheim on 11/28/25. She opened the door and was handed papers. (Cone Decl.,

¶¶1-2.) She testifies that she resides in Seal Beach, California and not at the address served in Anaheim. (Cone Decl., ¶3.)

The Trustees reason that she did not reside at the property and thus could not have been served by substitute service.

The Motion is granted as to the Southard Family Trust Dated December 13, 2022 because Plaintiff has not shown that it served one of the Trustees personally as indicated in the Proof of Service.

Moving parties are ordered to serve notice of this ruling.

Motion to Quash Service of Summons – NAI

NAI Capital Commercial, Inc. (NAI) moves to quash service of the Summons and Complaint (ROA 12) made to “NAI Capital” at 15821 Ventura Blvd Ste 320, Encino, CA 91436.

The request for judicial notice is granted.

NAI argues that the Complaint also does not mention NAI Capital Commercial Inc., instead naming the party as “NAI Capital” (See e.g. Complaint, ¶12.)

NAI points to the Complaint to argue that “In fact, the Complaint contains no allegations any specially appearing non-party NAI.” (Motion., p. 6:8-9.)

But the Complaint specifically identifies this Defendant as engaging in transactions in “commercial real estate sales and lease, including the sale and lease of industrial property in Orange County, California and that it is the company with which Defendant Paul Fisher was associated and assisted in brokering at time the Southard LLC sold the Property in or about mid-year 2022.” (Compl., ¶12.) Paul Fisher was also with NIA Capital at the time of the trial in February-March 2020 and therefore knew of the allegations and that those allegations had been proven before the Court.” (Compl., ¶40; see also ¶47.)

There is no declaration provided from the entity; rather, Counsel provides the already filed Summons and Complaint. (Kenney Decl., ¶2.)

The lease attached to the Complaint eliminates any genuine uncertainty about the identity of the business that Plaintiff intended to sue. (See Compl, Exh. A.) It specifically identifies “NAI Capital

		Commercial, Paul Fisher” as the dual agent as “NAI Capital Commercial”. Importantly, NAI provides no legal authority on point to show that a typo in its name rendered it unaware that it is the property entity in this case. (See e.g. <i>Sakaguchi v Sakaguchi</i> (2009) 173 Cal.App.4th 852, 861–862.) On Reply for the first time, NAI argues that there are actually two different entities and thus the naming issue is not a minor typo. NAI says that “NAI Capital, Inc. (that brokered the Lease originally) filed for bankruptcy in 2020. NAI Capital Commercial, Inc. purchased NAI Capital, Inc.’s assets free and clear out of bankruptcy via Bankruptcy Court order. That NAI Capital Commercial, Inc. brokered later transactions regarding property that was not subject to any lis pendens and had no disposition restriction on title...” (Reply, p. 3:6-16.) But these “facts” are not supported by any evidence (not even properly provided sworn testimony), and this argument is made for the first time on reply. Based on the judicially noticed documents and the opposition papers, the Court finds that service is proper. This is the only issue before the Court. The Motion is denied. NAI Capital Commercial Inc. shall give notice of this ruling.
10	Pelagio vs. County of Orange 2022-01292229	Motion for Summary Judgment and/or Adjudication Court will hear argument.
11	Salvador vs. City of Santa Ana 2025-01463617	Demurrer to Amended Complaint Court will hear argument Case Management Conference – remains on calendar
12	Takahashi vs. American	Motion to Compel Deposition (Oral or Written)